

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

PETER NHO,

Petitioner

VS.

ELISE TRAN,

Respondent

) Case Number: FPT-24-378443

) Hearing Date: June 16, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: CINDEE MAYFIELD

REQUEST FOR ORDER RE: CHANGE OF CHILD SUPPORT, SANCTIONS UNDER FCS 271

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Peter Nho (Father) and Respondent Elise Tran (Mother) were never married. They have one minor child, Kayleigh (DOB: 2/15/2020). Father is represented by attorney Amrit Kullar. Mother is self-represented.
- 2) On 8/21/2024, a Judgment Regarding Parental Obligations was filed in related Case No. FCS-24-356892 requiring Father to pay Mother \$1,196 per month in child support based on Father's gross income of \$4,857, Mother's income of \$0, and a 0% timeshare for Father. The Judgment also requires Father to provide and maintain health insurance coverage for Kayleigh if available at no or reasonable cost and for the parties to share equally reasonable uninsured healthcare costs for Kayleigh.
- 3) Now on for hearing is Father's Request for Order filed 4/10/2026 asking the Court to:
 - a. Determine Mother's actual income and earning capacity, including income derived from self-employment, business activities, and electronic payment platforms, and impute income to Mother as appropriate.

- b. Modify any existing wage assignment or child support withholding order to reflect the Court's new child support determination, and any overpayments or underpayments shall be addressed as equity requires.
 - c. Find that Father currently maintains private health insurance coverage for the minor child at his sole expense and order that Father continue to maintain such coverage so long as it remains available at reasonable cost; credit Father for the cost of the child's health insurance premiums in the child support calculation; and clarify that Mother shall not terminate or interfere with the child's medical benefits in a manner inconsistent with the Court's orders or applicable law.
 - d. Allocate unreimbursed medical, dental, vision, and health-related expenses for the minor child between the parties in proportion to their respective incomes, as determined by the Court.
 - e. Consider Mother's prior representations regarding her income, including statements that she has no income, in light of evidence of ongoing business activity and receipt of funds through multiple payment platforms. To the extent the Court finds such representations incomplete or inaccurate, the Court should draw appropriate adverse inferences in determining Mother's income and earning capacity.
 - f. Recalculate child support based on Mother's actual income and earning capacity and made retroactive to the earliest date permitted by law, including but not limited to the date of filing of Father's Request for Order.
 - g. Sanction Mother under Family Code section 271 based on her misrepresentations of being unemployed and having no income, compelling Father to file the instant motion
- 4) On 4/13/2026, Father filed an Income and Expense Declaration stating that he works 40 hours per week and earns \$36.01 per hour as a truck driver. The Court notes this averages out to \$6,242 in gross monthly income.
 - 5) Per the Proof of Service filed 4/17/2026, Father's Request for Order and related papers were mailed to Mother on 4/17/2026.
 - 6) Mother did not file a Responsive Declaration. However, on 5/27/2026, Mother filed an Income and Expense Declaration stating she has been a self-employed manicurist for 11 years. Mother

1 attached a Profit and Loss Statement stating that her total monthly average income is \$2,000 and
2 her average monthly expenses are \$1,200 for average monthly income of \$800. Mother reports no
3 other sources of income. Mother states that her expenses total \$3,100 per month and \$3,000 of
4 her expenses are “paid by others.” Mother states she has “serious health conditions” which
5 “severely limit her ability to maintain a stable job.” Mother did not disclose what health
6 conditions she has, but she attached to her Income and Expense Declaration a summary showing
7 the extensive prescriptions as well as a summary of doctor’s visits.

- 8 7) The Court notes that per the Findings and Order After Hearing filed 5/4/2026, Father has
9 visitation with Kayleigh every Monday for an hour and thirty minutes.

10 **B. Findings and Order**

- 11 1) Father states that records he obtained during discovery show that Mother received in excess of
12 \$170,000 in Paypal transactions between 2013 and 2026 and \$42,943 in Venmo transactions
13 between 2024 through 2026. Father further states that Mother received \$2,590 in Venmo deposits
14 in 2026 “alone”. If these representations are true, these transactions show less than \$3,000 per
15 month in “income.” Father also states that Mother received deposits to her Bank of America
16 account between 12/18/2024 and 1/17/2025 totaling \$7,919.76 and between 12/18/2025 and
17 1/16/2026 totaling \$7,628.44. The Court does not find that Mother is making significant income
18 and because none of these figures provide any information about Mother’s business expenses, the
19 Court is unable to draw a conclusion regarding what amount in net self-employment income
20 Mother may be earning.
- 21 2) Even if the Court were to impute full-time San Francisco minimum wage income of \$19.18 per
22 hour to Mother (which Father has not shown Mother has the ability to earn), guideline child
23 support would amount to \$1,173 as shown in the attached XSpouse calculation. This is because
24 Father is currently earning more than he was previously and he has less than 1% timeshare with
25 Kayleigh.
- 26 3) The Court does not find that Father has demonstrated a change in circumstance warranting a
27 downward modification of child support and Father’s request to modify child support downward
28 is DENIED. The Judgment Regarding Parental Obligations filed on 8/21/2024 shall remain in full
29 force and effect.

- 1 4) In his declaration, Father states he is “concerned that Respondent may interfere with or attempt to
2 alter the child’s medical coverage in connection with ongoing disputes.” The Court finds this
3 statement does not establish good cause for Father’s request that the Court “clarify that Mother
4 shall not terminate or interfere with the child’s medical benefits in a manner inconsistent with the
5 Court’s orders or applicable law.” This request is denied without prejudice to a proper showing.
- 6 5) Father’s request for Family Code section 271 attorney’s fees sanctions is denied.
- 7 6) Father’s attorney shall prepare the Findings and Order After Hearing.
- 8 7) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
9 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
10 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
11 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
12 proposed order after hearing directly to the court. Failure to submit the order after hearing within
13 10 days may allow the other party to prepare a proposed order and submit it to the court in
14 accordance with CA Rules of Court, Rule 5.125(d).
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Fixed Shares	Father	Mother	Monthly figures		Cash Flow	Guideline	Proposed
#of children	0	1	2026				
% time with NCP	0.00 %	0.00 %	GUIDELINE		Comb. net spendable	7927	7963
Filing status	SINGLE	HH/MLA	Nets(adjusted)		Percent change	0%	0%
# exemptions	1 *	2 *			Father		
Wages+salary	6242	3325	Father	4692	Payment cost/benefit	-1173	-1005
Self-employed income	0	0	Mother	3235	Net spendable income	3519	3687
Other taxable income	0	0	Total	7927	Change from guideline	0	168
TANF+CS received	0	0	Support		% of combined spendable	44%	46%
Other nontaxble income	0	0	Addons	0	% of saving over guideline	0%	464%
New spouse income	0	0	Guideln CS	1173	Total taxes	1334	1110
401(k) employee contrib	0	0	S.Clara SS	0	Dep. exemption value	0	0
Adjustments to income	0	0	Total	1173	# withholding allowances	0	0
SS paid prev marriage	0	0	-		Net wage paycheck	4490	4490
CS paid prev marriage	0	0	Settings changed		Mother		
Health insurance	216	0			Payment cost/benefit	1173	1041
Other medical expense	0	0			Net spendable income	4408	4276
Property tax expense	0	0			Change from guideline	0	-132
Ded interest expense	0	0	Proposed		% of combined spendable	56%	54%
Charitable contributions	0	0	Tactic 9		% of saving over guideline	0%	-364%
Misc tax deductions	0	0	CS	1229	Total taxes	89	277
Qual bus income ded	0	0	SS	0	Dep. exemption value	0	0
Required union dues	0	0	Total	1229	# withholding allowances	0	0
Mandatory retirement	0	0	Saving	36	Net wage paycheck	2781	2781
Hardship deduction	0 *	0 *	Releases	1			
Other GDL deductions	0	0	Released to Father				
Child care expenses	0	0					

Father pays Guideline CS, Proposed CS

FC 4055 checking: ON

Per Child Information							
	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor
All children	0 - 100	0	0	0	Father	1173	Father
	0 - 100	0	0	0	Father	1173	Father